

22STCV21977 22STCV21977

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Case Number: 22STCV21977 Hearing Date: September 24, 2026 Dept: 414

22STCV21977 Marc Alan Corbin, et al. v. 720 Normandie,

LP et al.

Friday,

July 30, 2026

[TENTATIVE]

ORDER GRANTING PLAINTIFFS' JOINT MOTION TO COMPEL DEFENDANT 709 S. MARIPOSE

AVE, LLC'S FURTHER RESPONSE TO REQUEST

FOR PRODUCTION OF DOCUMENTS, SETS TWO AND THREE; AND FOR MONETARY SANCTIONS (3628)

I. BACKGROUND

The

first amended complaint asserts claims arising from alleged uninhabitable conditions on property owned, managed, or controlled by Defendants. Plaintiffs allege eight causes of action arising from Defendants' alleged failure to remedy the conditions. Plaintiffs substituted themselves in place of prior counsel. (Subst. 12.29.25.)

II. DISCUSSION

A motion to compel further responses to a

document request is proper where the requesting party believes the statement of compliance is incomplete, or a representation of inability to comply is inadequate, incomplete, or evasive and/or an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310.)

Plaintiff

served a second set of document requests on August 14, 2025 and a third request on September 11, 2025. Defendant served

written responses to both sets on May 1, 2026, which are the subject of this

motion. After Plaintiffs filed this motion on June 17, 2026, Defendant

supplemented its responses on June 24, 2026, stating "unqualified compliance"

with statute, and producing Bates numbered documents. While Defendant submits

its June 24, 2026 responses, they are unverified. (Opp. .pdf 158-158; .pdf 172-173.) As such, they are non-compliant. Unsworn

responses are "tantamount" to no responses at all. (Appleton v. Superior Court (1988) 206 Cal. App. 3d 632, 636.) Plaintiff's reply brief maintains the

responses are defective.

Plaintiffs'

supplemental declaration states that Defendant served a second supplemental

response on September 22, 2026, that included a September 11, 2026, verification,

which Plaintiffs contend constitutes a fraud because Defendant cannot verify a response that did not exist on September 11, 2026.

What

appears clear is that Defendant did not attempt to cure the defects identified

by Plaintiffs until after Plaintiffs incurred the cost and burden of filing

this motion. After Plaintiff filed the motion, Defendant attempted to

supplement twice with defective verifications.

Defendant's

further responses shall comply with the requirements of statute by stating it will

comply in whole or in part "and that all documents or things in the

demanded category that are in the possession, custody, or control of that party

and to which no objection is being made will be included in the

production." (Code Civ. Proc., § 2031.220.)

A

statement of inability to comply "shall affirm that a diligent search and

a reasonable inquiry has been made in an effort to comply with that demand.

This statement shall also specify whether the inability to comply is because

the particular item or category has never existed, has been destroyed, has been

lost, misplaced, or stolen, or has never been, or is no longer, in the

possession, custody, or control of the responding party. The statement shall

set forth the name and address of any natural person or organization known or

believed by that party to have possession, custody, or control of that item or category of item." (Code Civ. Proc., § 2031.230.)

Defendant

shall comply with the statutory requirements for production which requires that documents produced "shall be identified with the specific request number to which the documents respond." (Code Civ. Proc., § 2031.280.) An unidentified "data dump" as characterized by Plaintiffs is not permitted. (Pollock v. Superior Court (2023) 93 Cal.App.5th 1348, 1358 ("As recently amended, it requires that a document 'be identified with the specific request number to which the documents respond.' (Id., subd. (a).) This replaces the prior requirement that documents "either be produced as they are kept in the usual course of business, or be organized and labeled to correspond with the categories in the demand." (Former § 2031.280, subd. (a).)"].)

The

production itself need not be verified, only the response. (Id.) While Pollock states that produced documents need not be Bates numbered, it appears that Defendant complied with the Bates request in at least one of its defective supplemental responsive production. The Court orders that the production be Bates numbered in the interest of efficiency and to avoid confusion, given the volume of documents produced.

Defendant

has not shown substantial justification for failing to respond to document requests served in August and September of 2025, and subsequently attempting to respond only when prodded by Plaintiffs with this motion. Plaintiffs also request sanctions in the amount of \$2741.00. Plaintiffs are self-represented. "A pro se litigant cannot recover attorney's fees as a discovery sanction, but he can recover the 'reasonable expenses' he has 'incurred,' including photocopying, computer-assisted legal research, and other identifiable and allocable costs." (Kravitz v. Superior Court (2001) 91 Cal.App.4th 1015, 1017.) Although a self-represented litigant may recover attorney's fees actually incurred for legal assistance provided in connection with a discovery dispute, the litigant must establish that such fees were in fact incurred. (Dalessandro v. Mitchell (2019) 43 Cal.App.5th 1088, 1093; Argaman v. Ratan (1999) 73 Cal.App.4th 1173, 1181.)

Here,

Plaintiffs seek \$2000.00 based upon four hours of "Legal research and

assistance \$250 per hour.” (Motion, Megan Corbin Decl., ¶ 8.) The declaration, however, does not identify an attorney who provided the claimed assistance, state that Plaintiffs retained or paid an attorney, attach an invoice or billing record, or otherwise establish that Plaintiffs actually incurred an obligation to pay \$250 per hour for legal services. Nor is there evidence establishing the source or basis for the asserted \$250 hourly rate. The bare characterization of time spent on “legal research and assistance,” without evidence that the claimed expense was actually incurred, is insufficient to support an award of attorney’s fees or other legal-assistance expenses. The Court therefore declines to award the requested \$2,000. Plaintiffs have, however, established \$741 in recoverable costs actually incurred in connection with the discovery dispute. Accordingly, the Court awards Plaintiffs monetary sanctions consisting solely of costs in the amount of \$741.

IV. CONCLUSION

Based

on the foregoing, Plaintiff’s motion is GRANTED. Defendant is ordered to serve verified responses and production without objection in compliance with statute as described above within 20 days. The Court imposes monetary sanctions totaling \$741.00 against Defendant, and its counsel of record, jointly and severally, payable to Plaintiffs within 20 days.